

14TH JUDICIAL CIRCUIT COURT, MUSKEGON COUNTY, MICHIGAN

ANDREW J. PIGORS, Plaintiff, v. EMILY WATSON, et al., Defendants.

Case No. 2024-001507-DC

ADVERSARY REBUTTAL FRAMEWORK -- Shady Oaks

DEFENSE 1: "Res Judicata / Prior Adjudication"

Argument: Claims were already adjudicated. **Rebuttal:** Current claims are different causes of action from any prior case. No prior adjudication on merits of RICO, slander of title, or tortious interference. Jeremy Brown's res judicata motion was itself fraudulent.

DEFENSE 2: "Tenant Violated Lease"

Argument: Plaintiff was properly evicted for lease violations. **Rebuttal:** Ledger records were fabricated. 'Arrears' were manufactured. Eviction was constructive and retaliatory, not based on legitimate violations.

DEFENSE 3: "Property Was Abandoned"

Argument: Home was legally abandoned. **Rebuttal:** Plaintiff maintained title throughout. Active attempts to sell prove non-abandonment. Manager's 'abandonment' claim

was made WHILE Plaintiff was actively selling.

DEFENSE 4: "Corporate Shield"

Argument: Parent entities not liable for local management. **Rebuttal:** RICO enterprise theory pierces corporate structure. Alter ego/veil-piercing arguments apply. Pattern of conduct across communities shows centralized control.

DEFENSE 5: "Statute of Limitations"

Argument: Claims are time-barred. **Rebuttal:** Continuing harm doctrine -- conduct ongoing through present. Discovery rule applies to fraud and RICO. Tolling for fraudulent concealment of ledger manipulation.